

1-2. 21CV03075 Hall, Chantelle v. City of Chico, et al.

EVENT: (1) Plaintiff's Motion to Compel Further Interrogatory Responses from the City of Chico

(2) Defendant Villa Rita Partners, LP's Motion for Determination of Good Faith Settlement

Plaintiff's Motion to Compel Further Interrogatory Responses from the City of Chico

CRC 3.1345

(c) Contents of separate statement A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response. Material must not be incorporated into the separate statement by reference. The separate statement must include--for each discovery request (e.g., each interrogatory, request for admission, deposition question, or inspection demand) to which a further response, answer, or production is requested--the following:

(1) The text of the request, interrogatory, question, or inspection demand;

(2) The text of each response, answer, or objection, and any further responses or answers;

(3) A statement of the factual and legal reasons for compelling further responses, answers, or production as to **each** matter in dispute;

(4) If necessary, the text of all definitions, instructions, and other matters required to understand each discovery request and the responses to it;

(5) If the response to a particular discovery request is dependent on the response given to another discovery request, or if the reasons a further response to a particular discovery request is deemed necessary are based on the response to some other discovery request, the other request and the response to it must be set forth; and

(6) If the pleadings, other documents in the file, or other items of discovery are relevant to the motion, the party relying on them must summarize each relevant document.

[Emphasis Added]

Plaintiff's counsel's declaration attaches as Exhibit A, a document captioned "Separate Statement in Support of Motion to Compel Further Interrogatory Responses from the City of Chico". The document only lists each interrogatory followed by the response. Nowhere in the document is there an analysis corresponding to each discovery request which explains why the response to the specific discovery request is inadequate.

Thus, the "separate statement" fails to comply with subdivision (c)(3). Because it fails to comply with subdivision (c)(3), it is not really a separate statement because the Court cannot simply rely on the document to adjudicate the particular discovery request. As the rule notes, the concept is that "no person is required to review any other document." Rather, because the document does not comply with subdivision (c)(3), we are forced to refer to the points and authorities.

The problem with that is, the points and authorities make general statements that are not tailored to specific requests. For example, the points and authorities state "When the city did respond with actual facts, their evidence was not tailored to the particular defense, rehashing the same statement over and over and over again."

It is untenable for the Court to review each discovery request and guess as to how or why the evidence was not tailored to the particular defense.

The motion is continued to July 29, 2026 for Plaintiff to file a separate statement which complies with CRC 3.1345(c). Plaintiff shall file and serve the separate statement no later than June 30, 2026. Defendant shall file an opposition no later than July 14.

Defendant Villa Rita Partners, LP's Motion for Determination of Good Faith Settlement

The motion is GRANTED. Defendant Villa Rita shall prepare and submit a form of order within two weeks.

3. 22CV01196 Renteria Graciano, Agustina v. Hignell, Incorporated

EVENT: Status Conference

Per CCP 384(b), counsel is directed to prepare an amended judgment which directs payment of the \$146,412.24 in unclaimed funds to the Cy Pres recipient Legal Aid at Work.